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Board Policy x.xx.xxx-P

Lobbying Registration Policy

Purpose

Portland Public Schools is committed to conducting contracting and procurement processes with transparency, integrity, and trust, and has comprehensive public contracting and purchasing policies and practices. District staff and members of the Board of Education regularly approve contracts and expenditures. It is important for the District to inform the public about individuals or entities that engage in lobbying with the District for the purpose of influencing policy making or the awarding of high-value contracts and expenditures.

This policy is in addition to any other District requirement or legal obligation related to contracting, conflicts of interests, or ethical implementation of District policies and programs.

Definitions

A. **Eligible Contracts and Expenditures:** District expense contracts, expenditures, or other economic interests that are expected to exceed $100,000 in a fiscal year, but Eligible Contracts & Expenditures do not include:

    - Contracts subject to competitive procurement processes under the PPS Purchasing & Contracting rules, including Request for Proposals (RFP), and Invitations to Bid (ITB). See PPS Purchasing & Contracting Rules.
    - Collective bargaining agreements

B. **Engagement:** Includes direct communication such as emails, phone calls, text messages, virtual or in-person meetings, or other direct outreach to District staff or Board members.

Registration Requirements

When an individual or entity Engages with District staff or Board members for the purpose of influencing policy making or the awarding of an Eligible Contract or Expenditure with the District, the individual and the entity they represent, if applicable, must register with the District if such Engagement with District staff or Board is expected to total or totals more than five (5) hours in a calendar quarter. Performing services under an existing PPS contract does not constitute Engagement under this policy.

District Registration

The District shall establish a public registration and post the registrations on its website for those required to register under this policy.

- Registration information shall include:
    - Name of the individual(s) and entity/ies they represent
    - General nature of the policy, contract or expenditure that is the subject of the Engagement with District staff or Board members

- Registrations are required to be maintained for at least 90 days after the individual or entity has its final Engagement with District staff or Board members for the purpose of obtaining an Eligible Contract or Expenditure.

Exceptions

This policy does not apply to:

- Individuals, groups, or entities that are advocating without compensation for District funding, policies, contracts, expenditures, or other decisions in which there is no direct financial impact to them.
- General marketing communications.
- Performance of an existing contract with the District.

Compliance with Other State Requirements

In addition to complying with this policy, individuals and entities engaging with District staff or Board members for the purpose of influencing policy making or the awarding of an Eligible Contract or Expenditure are expected to comply with Oregon ethics statutes (ORS chapter 244) and applicable District policies, as are District staff and Board members.